Revision Date
12/01/2019

Background:
Households or the designated authorized representative must cooperate in the application process and Quality Control (QC) review process. Refusal to cooperate in completing the application process will result in the application being denied. Households that refuse to cooperate with the QC review process will result in the household being sanctioned. This revision updates the section to the new format. There are no changes due to state legislation.

Purpose:
This section describes the CalFresh regulations for households failing to cooperate with the application and the QC review process.

Policy:

63-107.1 Household Cooperation to Determine Eligibility:
In order to determine eligibility to the CalFresh program, the household or its authorized representative must:

- Complete and sign the application form
- Be interviewed; and
- Verify certain information on the application

63-107.2 Refusal to Cooperate:
If the household, including excluded household members who are part of the CalFresh household, refuses to cooperate in completing the application process, the application will be denied at the time of refusal.

In order to determine that a household has refused to cooperate, the household must have been able to cooperate and clearly demonstrated that the household chose not to take the actions required to complete the application process.

If the household has merely failed to cooperate, as opposed to refuse to cooperate, the household will not be denied

The household will also be determined ineligible when refusing to cooperate in any subsequent review of eligibility, including reviews generated by reported changes, recertifications, or as part of a QC review.

Note: Refusal to disclose a Social Security Number (SSN) is an exception to the denial of the entire household. When an individual required to provide his/her SSN has refused to comply, the eligibility of the other household members will not be affected.

If a noncitizen refuses to provide immigration documentation or the sponsor's information (unless they meet an exception to sponsorship provisions found in 63-157.3), the noncitizen will be considered an excluded member of the CalFresh household and his/her income, resources and deductible expenses will be counted according to Sections 63-244 and 63-206.

63-107.3 Refusal to Cooperate with a QC review:
The Quality and Eligibility Support Departments (QESD) and QC staff are responsible for conducting reviews as part of the County's Performance Reporting System. For QC reviews, a statistical sample

of households will be selected from active cases and denied, suspended, or terminated CalFresh cases. The QC review period extends from October 1st to September 30th of the next year.

A household can be selected for a State or Federal review of CalFresh benefits authorized for a specific sample month. Cooperation is mandatory for both types of reviews. If a household refuses to cooperate, it is subject to State or Federal sanctions and it is ineligible to receive CalFresh. When a household member refuses to cooperate in a QC review, the entire household must be discontinued from the CalFresh program at the end of the month in which a timely and adequate notice can be provided.

The QESD Eligibility Support staff are responsible for imposing the QC sanction on the CalFresh household, as specified in How To #335.

Failure to cooperate with the QC review is a County initiated action. Therefore, the sanctioned household should be discontinued mid-period with timely notice. Refer to 63-285.1.

Sanction Periods
Once denied or discontinued for refusal to cooperate with the QC review, the household may reapply but will not be eligible until the household cooperates with the QC review during the review period. If the household does not cooperate during the review period, the household will be ineligible to participate for a specified period, depending on the review type (State or Federal).

State
The household is not eligible to reapply until at least 125 days after the end of the annual review period in which the refusal to cooperate with a State QC reviewer occurred.

Federal
The household is not eligible to reapply until 9 months after the end of the annual review period in which the refusal to cooperate with a Federal QC reviewer occurred.

Refer to 63-1103 Definitions and Examples for examples of State and Federal sanctions.

Note: An applicant's household that has been sanctioned for not cooperating with QC will be required to provide verification of all eligibility requirements, including items that would normally be verified only if questionable, as specified in 63-117.

63-107.4 Cooperating with QESD:
The QESD Eligibility Support staff are responsible for ending the QC sanction on the CalFresh household as follows:
QC Sanctions will be removed and the CalFresh case will be re-opened when:

- the sanctioned household cooperates and completes the review during the QC review period, and the household cooperates during the month of the discontinuance (sanction has not taken effect)

QC Sanctions will be removed but the CalFresh household must re-apply for CalFresh when:

- the sanctioned household cooperates and completes the review during the QESD review period, but they cooperate after the month of discontinuance (sanction is already in effect)

63-107.5 Failure to Cooperate with QESD:
The QESD Eligibility Support staff are responsible for assisting the QC reviewer in locating households that fail to cooperate during the QESD review period, by sending the CF 387 Request for Information (RFI) to the last known address, as outlined in 63-152.8.

63-107.6 Non-Cooperating Household Member:
Non-Cooperating Household Member
If a non-cooperating household member refuses to cooperate in a QC review, the entire household must be discontinued from the CalFresh program at the end of the month in which a timely and adequate notice can be provided.

Non-Cooperating Household Member leaves the Household During the Sanction Period
If the non-cooperating household member(s) leaves the household (household #1) during the sanction period, the sanction will follow the non-cooperating household member(s). If the remaining household members from the original household were not considered non-cooperating members, they will be eligible to reapply for CalFresh.

Non-Cooperating Household Member leaves the Household and joins another CalFresh Household
If the non-cooperating household member (from household #1) joins another CalFresh household (household #2), household #2 becomes ineligible until the sanction ends or the non-cooperating household member complies with the QC review during the QC review period and CalFresh household sanction is lifted.

Refer to 63-1103 Definition and Examples for examples.

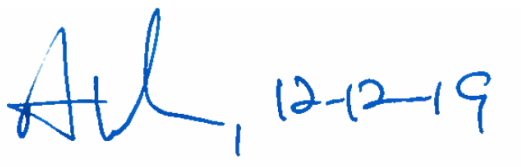
Procedure:
Required Actions
EO staff are to refer the CalFresh household to the QC reviewer for cooperation in the QC review.

Other Program Impacts
None

References:
MPP 63-505; ACL 11-72; ACL 11-72E; How To #335

Sunset Date:
This policy will be reviewed for continuance on or by 11/30/2022

Approval for Release:



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